

In any event, the Court has the authority to amend the Judgment to add the alias under Section 187 and Code of Civil Procedure sections 473(a)(1) and 473(d). See Code Civ. Proc. § 473(a)(1) (“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party...”) and 473(d) (“The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”).

The Court finds that amending the Judgment to add the additional language regarding the type of legal entity or individual capacities of the named Defendants is just and appropriate and will facilitate the enforcement of the Judgment, without changing its scope or effect.

The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Amend Judgment is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

4. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION FOR DISCOVERY COMPEL RECEIVER DAN HARKINS' DISCLOSURE OF THE RECEIVERSHIP ESTATE'S ACCOUNTS AND RECORDS**

FILED BY: LEONE, MISTY

TENTATIVE RULING:

This matter was continued by order of the Court at the Issue Conference held on January 8, 2025, as will be set forth in a forthcoming order of the Court.

5. 9:00 AM CASE NUMBER: C23-02039

CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON

HEARING IN RE: JOINDER TO RICKY D. HORTON MSJ

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Kevin Horton’s Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Defendant’s joinder motion is **denied** as set forth below.

General Factual and Procedural Background

This matter pertains to a dispute regarding financing and title related to real property located at 3501 DiMaggio Way in Antioch, California (the “Property”).

On October 17, 2025, Defendant Ricky Horton filed his motion for summary judgment as to Plaintiff’s Old Republic’s complaint. The hearing on the motion was set for January 12, 2026. On December 12, 2025, Old Republic filed its opposition to the MSJ. On December 22, Defendant Freedom Mortgage filed its opposition to the MSJ. On December 23, 2025, Nationstar Mortgage and Lakeview Loan Servicing also filed an opposition to the MSJ.

On December 22, 2025, Defendant Ricky Horton filed the instant Notice of Joinder in Co-Defendant Ricky Dean Horton’s Motion for Summary Judgment.

Analysis

Kevin Horton’s joinder motion is deficient for several reasons. To begin with, Kevin Horton does not include an affidavit/declaration or any of his own evidence to support his motion. Nor does the joinder include a separate statement of material facts – as is required for a summary judgment motion.

Code of Civil Procedure section 437c states that a party moving for summary judgment or summary adjudication must support the motion with affidavits and other discovery material. (Cal Code Civ. Proc. § 437c (b).) It also indicates that the “supporting papers *shall* include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed.” (*Ibid.* emphasis added.)

“A moving party’s failure to comply with this requirement is, in the court’s discretion, proper grounds to deny the motion.” (*Frazer v. Seely* (2002) 95 Cal.App.4th 627, 636.) While a notice of joinder “may be sufficient for some purposes [cite], it is not sufficient for purposes of the summary judgment statute.” (*Ibid.*) “The language of the statute is clear.’ [cite] Each moving party *shall* support their motion for summary judgment with a separate statement.” (*Ibid.*)

In addition, the summary judgment statute requires that “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Cal. Code Civ. Proc. § 437c (a)(1).) As noted above, Ricky Horton’s MSJ was scheduled for hearing on January 12, 2026. Kevin Horton did not file his Joinder motion until December 22, 2025 – a mere 21 days prior to the hearing. It is clear that “trial courts do not have authority to shorten the minimum notice period for summary judgment hearings.” (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1262 quoting *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117.) If a joinder to a summary judgment motion is not timely filed and served within the deadlines provided by the summary judgment statute, it is error for a trial court to allow the joinder. (*Lerma v. County of Orange* (2004) 102 Cal.App.4th 709, 718-19.)

The Court also notes that neither of the Horton Defendants are attorneys. Kevin Horton appears to assert that his brother and co-defendant Ricky Horton is also acting as “counsel” for him and that he reserves his “right to have [Ricky Horton] assist me in all proceedings.

A non-attorney cannot represent another individual in legal proceedings – even if that person has a ‘power of attorney’ to allow such representation. (*People ex rel. Department of Public Works v. Malone* (1965) 232 Cal.App.2d 531, 536-37. *See also Campbell v. Jewish Committee for Personal Service* (1954) 125 Cal.App.2d 771, 722, “**not being a lawyer, Campbell cannot appear as an attorney for his brother.**” (emphasis added.)) “[I]t has been well settled that persons may represent their own interests in legal proceedings but may not ‘practice law [for another] in this State unless [they are] active member[s] of the state bar.’” (*Drake v. Superior Court* (1994) 21 Cal.App.4th 1826, 1830)

As such, each of the Horton Defendants is responsible for their own arguments and must file their own motions. At a minimum, they must file a single joint motion if both brothers are making the same arguments and relying on the same evidence.

Conclusion

Defendant Kevin Horton’s joinder motion is **denied**.

6. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON
HEARING ON SUMMARY MOTION BY RICKY D. HORTON
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Ricky Dean Horton’s Motion for Summary Judgment (“MSJ”).

Defendant’s MSJ is **denied** as set forth below.

General Factual and Procedural Background

This matter pertains to a dispute regarding financing and title related to real property located at 3501 DiMaggio Way in Antioch, California (the “Property”).

In 2017, non-moving Defendant Kevin Horton obtained a loan secured by a Deed of Trust on the Property. It appears that in 2020, Kevin Horton applied for a new loan to refinance the Property. (UMF 1.) The new loan was allegedly obtained from Defendant Freedom Mortgage Corporation in the amount of \$326,574, the majority of which was intended to pay off the 2017 loan. (UMF 1-2.) The loan instructions specify: “Freedom Mortgage Corporation to Payoff Mortgage.” (*Ibid.*; Ricky Horton Ex. 1.)

On June 24, 2020, a new Deed of Trust was recorded indicating that Kevin Horton and Megan Lee Henderson (as joint tenants) obtained a loan from Freedom Mortgage in the amount of \$326,574 secured by the Property. (UMF 3.) Kevin Horton received correspondence from Freedom Mortgage confirming that 2017 mortgage was paid off and the 2017 Deed of Trust was cancelled. (UMF 5; Ricky Horton Ex. 3.)

In January 2023, a Grant Deed was recorded indicating that the Property was being transferred from Kevin Horton to Ricky Horton. (UMF 7.) Plaintiff Old Republic provided a title insurance policy to Ricky Horton in connection with this purchase. (*Ibid.*) As part of the process, Old Republic requested Ricky